

TENTATIVE RULINGS FOR August 17, 2026
Department S29 - Judge Nicole Quintana Winter

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. or 7:00 p.m. on the court day immediately before the hearing.

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your continued appearance is not necessary. However, you must check in. If both sides do not appear, the tentative will simply become the ruling. If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling. If one party wants to argue, Court will hear argument but will not change the tentative. If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court. This procedure is meant to minimize your waiting time in Court.

THOMAS M. CRUZ

v.

FCA US LLC

CIVSB2420959

Motion(s): Motion to Set Aside Dismissal

Movant(s): Plaintiff Thomas M. Cruz

Respondent(s): Defendant FCA US LLC

PROCEDURAL/FACTUAL BACKGROUND

On June 26, 2024, Plaintiff Thomas M. Cruz filed a Song-Beverly Complaint against Defendant FCA US LLC. Plaintiff's Complaint arises out of his purchase of a pre-owned 2019 Ram 1500 on December 12, 2020. He alleges the following causes of action under the Song-Beverly Act: (1) breach of express warranty; and (2) breach of implied warranty.

On January 22, 2026, the matter came before the Court for trial. Only FCA appeared, who informed the Court that the matter had been settled and requested additional time for the parties to finalize the settlement. The Court set an OSC re Dismissal (Settled) for March 24, 2026.

At the OSC on March 24, Plaintiff's counsel failed to appear and only FCA's counsel appeared. The Court dismissed the action; the minutes state Defendant's counsel indicated the release has been sent and signed and the only outstanding issue is attorney's fees, if any.

Now before the Court the Plaintiff's motion to set aside the dismissal under the attorney-fault provision of Code of Civil Procedure section 473, subdivision (b). Plaintiff contends the

dismissal was due to an inadvertent error in counsel's office in not properly calendaring the OSC re Dismissal hearing. Plaintiff concedes the Court properly served a notice of the Court's ruling setting the OSC re Dismissal. Plaintiff's counsel contends that Plaintiff's counsel's office was having technical difficulties that resulted in many hearings not being properly calendared despite being entered not the calendar system. Thus, Plaintiff's counsel missed the hearing. Plaintiff argues that he should not be prejudiced due to the mistake, inadvertence, and excusable neglect of his attorneys.

Plaintiff submits the declaration of his counsel, Christopher Joo Hyung Im in support, who testifies to the calendaring error. (Huyng Im Decl. ¶ 2.) He also asserts that because FCA failed to provide Plaintiff with the settlement agreement since January 2026, Plaintiff now wants to move forward with the litigation. (*Id.* ¶ 3.) He states that he received the 998 Offer to Compromise from FCA on April 13, 2026, three months after the case settled in principle, but his client no longer wants to accept to offer. (*Id.* ¶ 4.)

FCA opposes, arguing that the parties have a binding settlement and Plaintiff drafted the Settlement Agreement and Release and signed it. It contends that Plaintiff's counsel's later advisement that Plaintiff no longer wishes to abide by the settlement does not provide a basis to invalidate or set aside the dismissal. In addition, FCA intends to bring a motion to enforce the settlement. It argues that Plaintiff does not submit sufficient evidence in support of setting aside the dismissal, especially where Plaintiff already executed a Settlement Agreement and Release. (Gregg Decl. ¶ 6 and Exhs. B and C.)

Plaintiff replies that good cause to set aside the dismissal is demonstrated where Plaintiff's counsel's failure to appear was the result of a calendaring error. He also again argues that the parties have not entered into a binding settlement agreement. Plaintiff's counsel contends that in response to Plaintiff's signed Settlement Agreement, FCA responded that they would send their own 998 Offer, which it eventually sent. (Hyung Im Reply Decl. ¶¶ 3-5 and Exhs. 2-4.)

DISCUSSION

Code of Civil Procedure section 473, subdivision (b), provides in relevant part: "Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect."

Under the mandatory provision of Code of Civil Procedure section 473, subdivision (b), relief is mandatory even if the attorney's conduct constitutes inexcusable neglect. "The purpose of the attorney affidavit provision is to relieve the innocent client of the burden of the attorney's fault, to impose the burden on the erring attorney, and to avoid precipitating more litigation in the form of malpractice suits." (*Hu v. Fang*, (2002) 104 Cal.App.4th 61, 64.) In addition, an attorney is responsible for supervising the work of legal assistants. An attorney's employee's scheduling error that results in a default was the "fault" of the attorney for purposes of section 473, subdivision (b). (*Id.* at pp. 64-65.) Therefore, the calendaring error that Plaintiff's counsel states was due to an office error and technical issues with the calendaring system is a sufficient basis to grant relief under the mandatory provision of section 473, subdivision (b), where such errors should be attributed to counsel.

As for the issue with the Settlement Agreement and whether the parties had entered into a binding agreement, such issue is not relevant to the issue of whether Plaintiff has presented sufficient evidence in support of relief under the attorney-fault provision. As discussed above, sufficient evidence is provided. In addition, even with a Settlement Agreement, had Plaintiff's counsel appeared, he could have requested that the matter not be dismissed for good cause shown, which it appears would have been related to the Settlement Agreement not being finalized.

RULING

The Court rules as follows:

1. Grants Plaintiff's motion under the mandatory provision of Code of Civil Procedure section 473, subdivision (b), and vacate the dismissal entered on March 24, 2026. Court finds that a sufficient declaration in support of attorney-fault is presented;
2. Court sets Trial Readiness on January 13, 2028, at 9:00 a.m. and Jury Trial for January 18, 2028, at 10:00 a.m.;
3. Orders Plaintiff, as the prevailing party, to give formal notice of the Court's final ruling.

Dated: August 19, 2026

Judge Nicole Quintana Winter